

thrived in the warm, humid climate. In the North, where different crops were grown, fewer slaves were used to work the land.

Many in the North favored abolition and, during the Revolutionary War (1775–1783), they equated British rule with the practice of slavery. The North–South divide on slavery became so intense that the two sides could only adopt the US Constitution in 1787 by omitting the slave trade issue from its articles. Yet, in 1788, the ratified Constitution had clauses that guaranteed the rights to repossess

any “person held to service or labor,” effectively acknowledging the institution of slavery across the US, which would continue for eight more decades.

In 1839, the case of the slave ship, *La Amistad*, galvanized opinion. Two Spanish plantation owners had sailed from Cuba with 53 slaves, who broke free and ordered the owners to sail to Africa. After sailing off course, the ship and slaves were impounded as salvage in Connecticut. A 2-year legal battle involving Spain ended with the US Supreme Court ruling

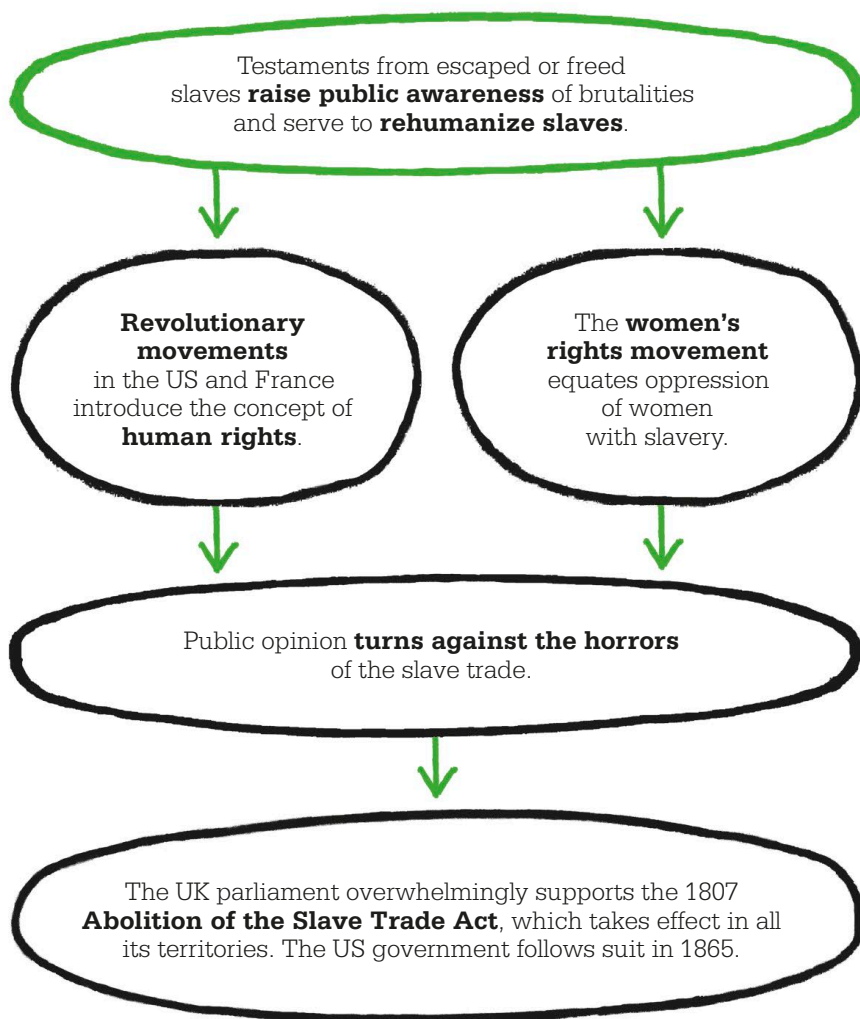
the Africans were not property, but free persons who had been illegally kidnapped and brought to Cuba.

Dred Scott v. Sandford

Since 1643, various Acts had compelled the return of escaped slaves to their masters. The 1850 Fugitive Slave Act included fines for anyone interfering in rendition of slaves and forced citizens to aid in their recapture. Some Northern states issued their own laws to try to nullify its impact.

In 1856, the US Supreme Court heard the *Dred Scott v. Sandford* case. Dred Scott was born a slave, but his owners had lived for a time in Wisconsin and Illinois, where slavery was outlawed, before they returned to Missouri, a slave state. So Scott applied to the court to be set free, with his wife Harriet.

In 1857, Chief Justice Roger B. Taney ruled against Scott, stating that all people of African descent, slaves or not, were “beings of an inferior order,” not US citizens, so they could not bring a suit in a federal court. This controversial ruling was a factor in igniting the Civil War (1861–1865) between the North and the slave-owning South.



“Neither slavery nor involuntary servitude ... shall exist within the United States, or any place subject to their jurisdiction.
US Constitution, Thirteenth Amendment”